

25CHCV03133 25CHCV03133

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Case Number: 25CHCV03133 Hearing Date: August 13, 2026 Dept: F49

Dept. F49

Date: 8/13/26

Case Name: Angela Oganezova vs. Quincy Ray Johnson;
J.B. Hunt Transport, Inc.; Omar Rodriguez Copado; JMP Property Management;
and Does 1-50

Case No. 25CHCV03133

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 13, 2026

MOTION FOR
DETERMINATION OF GOOD FAITH SETTLEMENT

Los Angeles Superior
Court Case No. 25CHCV03133

Motion filed: 3/4/26

MOVING PARTY: Defendants J.B. Hunt Transport, Inc.
and Quincy Ray Johnson

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court determining that the tentative settlement agreement between Plaintiff Angela Oganezova and Defendants J.B. Hunt Transport, Inc. and Quincy Ray Johnson is in good faith.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

This action arises from personal injuries sustained by Plaintiff Angela Oganezova ("Plaintiff") in a motor vehicle accident allegedly caused by Defendants. On September 2, 2025, Plaintiff filed the complaint against Defendants Quincy Ray Johnson ("Johnson"), J.B. Hunt Transport, Inc. ("J.B. Hunt"), Omar Rodriguez Copado ("Copado"), and JMP Property Management ("JMP"), alleging a single cause of action for motor vehicle negligence. On November 17, 2025, and December 1, 2025, J.B. Hunt and Johnson filed their respective answers. On April 15, 2026, Copado and JMP filed their joint answer.

On March 4, 2026, J.B. Hunt and Johnson ("Moving Defendants") filed the instant Motion for Determination of Good Faith Settlement (the "Motion"). On August 7, 2026, Moving Defendants filed a notice of non-opposition to the Motion.

No opposition or reply papers have been filed.

ANALYSIS

"Any party to an action in which it is alleged that two or more parties are joint tortfeasors ... shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors." (Code Civ. Proc., § 877.6, subd. (a)(1).)

"The issue of the good faith of a

settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing." (Code Civ. Proc., § 877.6, subd. (b).)

The determination as to whether a settlement is in good faith is a matter left to the discretion of the trial court." (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1349.)

A. Determination of Good Faith Settlement

"The party asserting the lack of good faith shall have the burden of proof on that issue." (Code Civ. Proc., § 877.6, subd. (d).)

The California Supreme Court held in Tech-Bilt, Inc. v. Woodward-Clyde & Associates that the trial court's determination of good faith is based on a number of factors, including (1) "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability," (2) the amount paid by the settlor, (3) "the allocation of settlement proceeds among plaintiffs," (4) "a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial," (5) "the financial conditions and insurance policy limits of settling defendants," and (6) whether collusion, fraud, or tortious conduct intended to injure the interests of the non-settling defendants exists. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

"Only when the good faith nature of a settlement is disputed [is it] incumbent upon the trial court to consider and weigh the Tech-Bilt factors." (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.) "[W]hen no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." (Ibid.)

Here, Moving Defendants reached a settlement with Plaintiff (the "Settlement") on February 12, 2026, and the Settlement is attached to the declaration of Moving Defendants' counsel. (Lezon Decl., ¶ 6; Exh. A.) Pursuant to the terms of the Settlement, Plaintiff agrees

to dismiss Moving Defendants from the action with prejudice and waive all claims against them arising from the accident in exchange for the payment of \$100,000 to Plaintiff. (Id., ¶ 8, Exh. A, at pp. 1-2.) Moving Defendants address the factors set forth in Tech-Bilt, contending that the Settlement is in good faith because it is greater than Plaintiff's total medical expenses at the time of settlement, represents a substantial portion of Plaintiff's total potential recovery against all Defendants without regard to apportionment, and liability is still contested. (Mot., at pp. 9-10.)

Given that no opposition to the Motion has been filed and the good faith nature of the Settlement is not in dispute, the foregoing provides sufficient basis to grant the Motion.

The Court therefore GRANTS the Motion.

CONCLUSION

Defendants J.B. Hunt Transport, Inc. and Quincy Ray Johnson's Motion for Determination of Good Faith Settlement is GRANTED.

Moving party to give notice.